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Executive Order

AMENDING THE EXECUTIVE ORDER OF FEBRUARY 6, 1917, RELATING TO THE EXCLUSION AND DEPORTATION OF UNDESIRABLE PERSONS FROM THE CANAL ZONE.

No. 4314

By virtue of the authority vested in me by the provisions of the Act of Congress approved August 21, 1916, entitled "An Act Extending Certain Privileges of Canal Employees to Other Officials on the Canal Zone and Authorizing the President to Make Rules and Regulations Affecting the Health, Sanitation, Quarantine, Taxation, Public Roads, Self-Propelled Vehicles and Police Powers on the Canal Zone and for Other Purposes, Including Provision as to Certain Fees, Money Orders and Interest Deposits," I do hereby amend Sections 1 and 2 of the Executive Order of the President, dated February 6, 1917, relating to the exclusion of undesirable persons, to read as follows, to wit: No 2527

Section 1. The Governor of The Panama Canal is hereby empowered to exclude or cause to be excluded the following classes of persons from the Canal Zone: idiots, imbeciles, feeble-minded persons, the insane, persons who have been insane within five years previous to their attempted entry into the Canal Zone, epileptics, paupers, criminals, professional beggars, gypsies, persons of notoriously bad character, persons whose presence would be a menace to the public health or welfare of the Canal Zone, persons who may be suffering from a loathsome, dangerous or contagious disease, persons who have been convicted of a felony, anarchists, persons whose purpose it is to incite insurrection, persons who are liable to become a public charge, and all others whose presence in the judgment of the Governor would tend to create public disorder or in any manner impede the prosecution of the work of opening the Canal or its maintenance, operation, sanitation or protection.

The cost of excluding or deporting persons hereunder shall be a charge against the person or interest responsible for the entry of the undesirable person into the Canal Zone, the collection thereof to be enforced in the manner hereinafter provided unless the same shall be paid out of the bond or undertaking or deposit hereinafter designated. In cases of deportation in which no person or interest can be held responsible for the cost hereunder or where such cost is not paid out of the bond or undertaking or deposit hereinafter provided for, the cost of such deportation shall be paid from the appropriations made for the maintenance, operation, sanitation and protection of the Canal.

Any person liable to be excluded because likely to become a public charge or because of physical disability other than tuberculosis in any form or any loathsome, contagious or dangerous disease may, nevertheless, be admitted in the discretion of the Governor or any authority subordinate to him upon the giving to The Panama Canal of a suitable bond or undertaking to be approved by the Governor in such amount and containing such conditions as he may prescribe to indemnify The Panama Canal against loss on account of the conditional admission of such person. In lieu of such bond or undertaking such person may deposit in cash with the Governor such amount as may be required. Admission of such person shall be a valid consideration for the giving of such bond or undertaking or cash deposit. The Panama Canal shall be entitled to maintain suit on any such bond or undertaking for all damages sustained if the conditions thereof are broken, and it shall have the right to retain from any cash deposit made in lieu of such bond or undertaking such damages as The Panama Canal may sustain by reason of a violation of the terms of such deposit.

Section 2. Any person falling within any one of the excluded classes mentioned in the foregoing section who desires to cross the Canal Zone in order to reach his final destination may be allowed to effect such transit in the custody

of a representative of The Panama Canal authorities, provided the owner or master of or person or interest controlling the vessel upon which such person arrives at port in the Canal Zone will agree in writing that if such person is rejected at his final destination and returned to the Canal Zone his deportation therefrom shall be at the expense of the owner or interest controlling the vessel, in which case the cost of the deportation shall be enforced against the owner or interest in the manner prescribed by the laws of Congress and the provisions of this Executive Order; and provided further that any person liable to be denied the right of transit across the Canal Zone because likely to become a public charge or because of physical disability other than tuberculosis in any form or any loathsome, contagious or dangerous disease may, nevertheless, in the discretion of the Governor or any authority subordinate to him, be permitted to transit the Canal Zone conditionally upon the giving to The Panama Canal of a suitable bond or undertaking to be approved by the Governor in such amount and containing such conditions as he may prescribe to indemnify The Panama Canal against loss on account of the conditional transit of such person across the Canal Zone. In lieu of such bond or undertaking such person may deposit in cash with the Governor such amount as may be required. Permit to transit the Canal Zone in such case shall be a valid consideration for the giving of such bond or undertaking or cash deposit. The Panama Canal shall be entitled to maintain suit on any such bond or undertaking for all damages sustained if the conditions thereof are broken, and it shall have the right to retain from any cash deposit made in lieu of such bond or undertaking such damages as The Panama Canal may sustain by reason of a violation of the terms of such deposit.

Section 3. This Order shall take effect thirty days from and after this date.

CALVIN COOLIDGE

THE WHITE HOUSE,
September 13, 1923.

[No. 3903.]

GOVERNMENT PRINTING OFFICE